

24STCV01792 24STCV01792

County: los-angeles

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Case Number: 24STCV01792 Hearing Date: August 13, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

GAGAN

KAPOOR,

Plaintiff,

vs.

CITY

OF LOS ANGELES, et al.,

Defendants.

Case No.:

24STCV01792

Hearing

Date:

August 13, 2026

[TENTATIVE]

ORDER DENYING MOTION FOR RECONSIDERATION

I. BACKGROUND

Plaintiff Gagan Kapoor

("Kapoor") allegedly tripped over a boltlike structure protruding from Defendants' sidewalk. Kapoor sued Defendants for dangerous condition of public property and negligence – premises liability.

On March 25, 2026, the Court granted Defendant City of Los Angeles's ("City") motion for summary judgment ("MSJ").

On April 6, 2026, Defendant Historic Core Business Improvement District Property Owners Association ("HCBID") filed the instant motion for reconsideration of the Court's ruling on the City's MSJ.

II. LEGAL STANDARD

Code of Civil Procedure
section 1008, subdivision (a),^[1]
requires that a motion for reconsideration be based on new or different facts, circumstances, or law. A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212.)

The moving party "shall state by affidavit . . . what new or different facts, circumstances, or law are claimed to be shown." (§1008, subd. (a).) These requirements set forth "the court's jurisdiction with regard to applications for reconsideration of its orders" (§1008, subd. (e).) Otherwise, "a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon 'new or different facts, circumstances, or law.'" (Ibid.)

Any party affected by the order may, within 10 days after service upon the party of written notice of

entry of the order, file a motion for reconsideration. (§1008, subd. (a).)

Whether “new” facts alleged

are sufficient to satisfy the requirements of section 1008, subdivision (b), is a question confided to the sound discretion of the trial court, with which the appellate court will not interfere absent an obvious showing of abuse. (*Graham v. Hansen* (1982) 128 Cal. App. 3d 965, 971.)

III. DISCUSSION

A. Timing Requirements

Pursuant to section 1008, subdivision (a), any motion for reconsideration must be filed within 10 days of service of the order to be reconsidered upon the moving party. The City served notice of the Court’s ruling on the MSJ on March 27, 2026. Therefore, any motion for reconsideration needed to be filed and served by April 6, 2026. As this motion was filed on April 6, 2026, this motion is timely. The Court will address the merits of this motion.

B. New or Different Facts

HCBID requests the Court reconsider the Court’s order granting the City’s MSJ on the grounds there exist facts and evidence which could not, with reasonable diligence, be presented at the time of the hearing. HCBID specifically argues the Court should reconsider the ruling based upon new evidence demonstrating the City lacked actual or constructive notice of the alleged dangerous condition, a primary issue which the Court considered and eventually granted summary judgment.

HCBID’s new evidence is sourced from the deposition of the City’s person most knowledgeable, Glenn Edward LaCoure II (“LaCoure”). Kapoor first noticed this deposition on January 23, 2026, for February 10, 2026. (Mot., Dawkins Decl. ¶ 8, Ex. D.) The Court notes this deposition was not noticed until at least one month after the City filed the subject MSJ. The City objected on the basis of unavailability and parties agreed to reschedule the deposition for March 12, 2026. (Id. at ¶¶ 9-10, Ex. E-F.) The deposition occurred on the agreed date, 6 days before the MSJ hearing date, with HCBID’s counsel present. (Id. at ¶ 11.)

At the deposition, LaCoure was asked about a work order produced to other parties by the City, at the latest, on February 18, 2026—18

days before HCBID's opposition was due and 38 days before the MSJ hearing—which presented a potential in-person inspection of the subject location, contrary to the City's previous assertions no inspection had ever taken place. (Id. at ¶¶ 15-16.) LaCoure testified that at least one person conducted a visual inspection around the area of the incident in October 2022 in response to a complaint regarding pedestrian scaffolding. (Id. at ¶ 5, Ex. B.) The transcript of this deposition was not produced until March 19, 2026, one day after the initial hearing on the MSJ, but before the Court issued its ruling. (Id. at ¶ 12.) HCBID asserts this calls into question whether the City had actual or constructive notice of the bolt in the sidewalk.

However, Section

1008 requires a “threshold showing of diligence which has long required an ‘explanation’ of why the ‘newly discovered’ matter was not presented earlier.” (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 688.) Here, the Court finds HCBID has not provided a satisfactory explanation for failure to produce the evidence at an earlier time.

HCBID had multiple

opportunities to request a continuance on the MSJ, pursuant to section 437c, subdivision (h), cite to the document indicating a potential October 2022 inspection, or discuss LaCoure's testimony, prior to the Court issuing this ruling. Instead, no party sought the City's PMK deposition until one month after the City filed the MSJ. No party mentioned the potentially contradictory document, produced at least 18 days before any MSJ opposition was due. No party requested a continuance pursuant to section 437c, subdivision (h), based upon the upcoming PMK deposition. No party mentioned LaCoure's testimony at oral argument on the MSJ, March 19, 2026, despite HCBID attending the deposition and being fully aware of this testimony. Even if HCBID did not currently have a copy of the transcript, HCBID was fully capable of discussing the potentially relevant content of the deposition and requesting a continuance to obtain a copy of the transcript. HCBID routinely failed to act with diligence in requesting continuances or presenting evidence available at all relevant times.

HCBID's argument that HCBID

did not feel it needed to submit additional briefing or orally argue deposition testimony because the Court's initial tentative denied the MSJ is also indicative of a lack of diligence. HCBID acknowledges it could have taken steps to present this evidence or request a continuance at oral argument but failed to do so because HCBID felt its opposition was sufficiently pled. HCBID cannot now move to make arguments it failed to make previously, despite having

every opportunity.

New York Times Co.

v. Superior Ct. (2005)

135 Cal. App. 4th 206 (New York Times) is instructive. In New York Times, plaintiff WSN

sought reconsideration of the trial court's granting of NYT's motion for

summary judgment, arguing that it had obtained newly discovered evidence of

deposition testimony just two days before the summary judgment hearing. (Id. at 209-210.) The trial court granted the motion for reconsideration

in part. (Id. at 210.) NYT petitioned for a writ of mandate. (Ibid.) The Court of Appeal granted the writ,

directing the trial court to vacate its order on reconsideration and reinstate

its order granting summary judgment. (Id.

at 210, 216.) The Court of Appeal

reasoned in part:

"The

Cerullo and Nelson deposition testimony does not constitute new or different

facts within the meaning of section 1008. Although the evidence was new to the trial

court, it was available to WSN throughout the discovery process and was easily

obtainable, as demonstrated by the April 1 depositions. WSN (and certainly C2B), were or should have

been aware of the details about the online ad campaign from its inception. WSN failed to include any of this information

in its opposition to the summary judgment motion, or even mention it to the

court until the end of the hearing, when it appeared that the court would rule

against it. This evidence was not the

type of "new or different facts, circumstances, or law" that would justify

reconsideration." (Id. at 213-214.)

Similar to the situation in

New York Times, the Court finds the evidence here is not newly

discovered, as it clearly existed at least at the time of oral argument.

The Court also finds HCBID has not

demonstrated the required diligence as to why this was not presented earlier. Therefore, the Court denies the motion for reconsideration.

IV. CONCLUSION

Defendant Historic Core Business Improvement

District Property Owners Association motion for reconsideration is DENIED.

DATED:

August 13, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.